

MARSDEN AUDIO LABORATORIES, INC. —INFORMATION GOVERNANCE MAIL JOURNAL ARCHIVE —SEARCH REPORT

Request	IG-SR-2025-0007
Requested by	B. Crozier, Director, IP Operations, January 6, 2025
Run by	F. Drozdov, Director, Information Governance, and P. Nakagawa-Ellery, eDiscovery Analyst
Search executed	January 13, 2025, 14:02 –14:21 PST
Report issued	January 14, 2025 (version 1)
Matter	MAL-JP-2010-0392 (legacy MAL-2010-0392, Yokohama series)

1. Source and provenance

The corporate mail journal has captured every message sent to or from a mailbox on the corporate tenant since **October 3, 2008**, by a journaling rule applied at the transport layer. Journaling is not selective: it captures the message as transmitted, with attachments, before any user action.

The Yokohama mailboxes were brought onto the corporate tenant on **October 17, 2008**. Munich on **March 2, 2009**. San Mateo, Seoul and Shanghai predate the journal.

The journal store has never been subject to a retention schedule. Retention schedule RS-07 was written for the document management systems and was never extended to the journal, because the journal is not a system of record. For the same reason the journal does not appear in the scope of any systems migration, including the PALLAS to Veritan migration of February 2016 (IPOPS-MIG-2016-004).

Nothing in the journal has ever been deleted, culled or migrated.

2. Scope of this search

Date range	January 1, 2009 to December 31, 2014
Mailboxes	All Marsden mailboxes journaled in the period —Yokohama, San Mateo, Munich, Seoul, Shanghai (the last two return no responsive items)
Messages in scope	241,700
Attachments in scope	96,338
Languages present in scope	English, Japanese, German, Korean, Chinese, French, Portuguese

3. Method

Per the requester's instruction the search was **not confined to** the matter number; search 2 below is retained only as a control.

The matter number changed from MAL-2010-0392 to MAL-JP-2010-0392 in January 2013, and the Japanese-language traffic was expected not to contain either form.

Searches run (all case-insensitive, all against message body, subject and extracted attachment text):

#	Terms	Hits
1	correspondent domain shinonome-denki.co.jp, any direction	1,844
2	MAL-2010-0392 OR MAL-JP-2010-0392	58
3	別紙 A	34
4	オブジェクトクラスタリング OR object clustering	208
5	確認書 (correspondent domain shinonome-denki.co.jp)	12
6	61/375,208 OR PCT/US2011/048013 OR WO 2012/024531	47
7	JD-SHN-09	391
8	1 AND (3 OR 4 OR 5)	26

Attachment text extraction was applied to 96,338 attachments; 94,102 extracted successfully. Of the 2,236 failures, 1,981 are images and 255 are password-protected archives, none within the responsive set.

Deduplication by message-id across sender and recipient copies. Chain of custody per IG-SOP-04; hashes in appendix C.

4. The Osaka sequence —eleven messages

Correspondence between Marsden (Yokohama, and San Mateo at item 10) and the intellectual property department of Shinonome Electric Co., Ltd. (Osaka) concerning this invention.

Eleven messages, September 30, 2010 to June 3, 2011. **Ten of the eleven are in Japanese**; item 10 is in English.

#	Date	Time	From	To	Subject	Lang	Att
1	2010-09-30	15:20	R. Kagami	海田 隆志	MAL-2010-0392（横浜系列）に係る発明の権利帰属についてのご確認のお願い	ja	1
2	2010-10-06	09:34	芦谷 美奈	R. Kagami	RE: ご確認のお願いの件（受領のご連絡）	ja	0
3	2010-10-28	16:02	R. Kagami	芦谷 美奈	ご確認の件の進捗について	ja	0
4	2010-11-02	11:15	芦谷 美奈	R. Kagami	RE: ご確認の件の進捗について（部内確認中でございます）	ja	0
5	2010-11-10	17:45	海田 隆志	R. Kagami	RE: MAL-2010-0392（横浜系列）に係る発明の権利帰属についてのご確認のお願い	ja	0
6	2010-12-20	10:26	芦谷 美奈	R. Kagami	12月17日知的財産委員会開催のご報告	ja	0
7	2011-01-19	14:08	R. Kagami	芦谷 美奈	確認書の様式についてのご相談	ja	1

#	Date	Time	From	To	Subject	Lang	Att
8	2011-02-08	09:52	芦谷 美奈	R. Kagami	RE: 確認書の様式についてのご相談 (法務部確認中)	ja	0
9	2011-03-15	11:20	芦谷 美奈	R. Kagami	3/14 共同開発 定例レビュー議事メモの送付／別紙 A の運用について	ja	0
10	2011-05-11	16:40	C. Nyeholt	海田 隆志	MAL-2010-0392 - the PCT deadline is August 19	en	0
11	2011-06-03	16:12	海田 隆志	R. Kagami	MAL-2010-0392 (横浜系列) に係る発明の権利帰属について (確認書送付)	ja	1

Item 11 is copied to 芦谷 美奈 and to C. Nyeholt.

5. Key items recovered

5.1 —Item 11 and its attachment. June 3, 2011, 16:12. Kaida Takashi, General Manager, Intellectual Property Department, Shinonome Electric Co., Ltd., to Ryoko Kagami. Attachment 確認書 _20110603.pdf, four pages, 1.7 MB, PDF 1.4, produced by a scanner (Ricoh MP C4501, EXIF intact), sealed and signed. Text extracts cleanly. Document number SDK-IP-2011-0288. The operative wording appears both in the attachment and in the body of the message.

5.2 —The Japanese original of the joint development agreement. Attached to an internal message of November 19, 2009, 09:40, from Eleanor Bricknell to Ryoko Kagami and Curtis Nyeholt. Filename 共同開発契約書 _ 東雲電機 _20091116.pdf, 31 pages including 別紙 A (2 pages) and 別紙 B (3 pages). The English courtesy translation is attached to the same message as a second file, 24 pages, **without the annexes.**

5.3 —The instruction that produced the letter. Curtis Nyeholt to Ryoko Kagami and Kengo Morisue, August 19, 2010, 11:52, copied to Eleanor Bricknell and Adaeze Okonkwo-Lind.

5.4 —The record of the letter in PALLAS. Adaeze Okonkwo-Lind to Ryoko Kagami, June 8, 2011, 13:26.

6. Notes for the requester

Two observations on method, for the file.

The matter number would not have found this. Search 2 returns 58 messages, of which only four are in the Osaka sequence. Ten of the eleven messages in the sequence are in Japanese, and seven of those ten do not contain any form of the matter number in the body. Searching on the identifier would have missed the June 3, 2011 letter.

The English terms would not have found it either. None of the ten Japanese messages contains the words “ownership”, “Annex A”, “sole” or “joint”. The concepts are all present. They are present as 権利帰属, 別紙 A, 单独所有 and 共有. The single English message in the sequence, item 10, is a four-line deadline chase that contains none of the four either.

Fenella Drozdov
Director, Information Governance